



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner
Subject: UDC-22-00157 – Storey Boulevard Extension Partial Plat Vacation
Date: May 23, 2022

Background:

The item for consideration is a *Partial Plat Vacation*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/23/2022
- Public Services Committee 6/7/2022
- Final consideration 6/13/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their May 16, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION PROVIDING FOR PARTIAL VACATION OF THE STOREY BOULEVARD EXTENSION FINAL PLAT."

WHEREAS, on February 26, 2007, the Storey Boulevard Extension final plat was approved by the Governing Body of the City of Cheyenne;

WHEREAS, on May 3, 2007, the Storey Boulevard Extension final plat was recorded with the Clerk of Laramie County as Record No. 474166, Book 9, Page 27; and

WHEREAS, on April 28, 2022, the City applied for partial vacation of the Storey Boulevard Extension; and

WHEREAS, on May 16, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed partial vacation that is the subject of this resolution, and recommended approval of said partial vacation; and

WHEREAS, the City of Cheyenne are the owners of Lot 1, Block 3; Lot 1, Block 5; and Lot 1, Block 6, Storey Boulevard Extension; and

WHEREAS, Lot 1, Block 3; Lot 1, Block 5; and Lot 1, Block 6 of the Storey Boulevard Extension final plat are the only lots affected by the proposed partial plat vacation; and

WHEREAS, the owners of Lot 1, Block 3; Lot 1, Block 5; and Lot 1, Block 6 of the Storey Boulevard Extension final plat have requested partial plat vacation vacating the notes and callouts on said plat as shown in Attachment A which is attached hereto and incorporated herein;

WHEREAS, the Unified Development Code of the City of Cheyenne is silent on the plat vacation process and reliance on state statutes is necessary and appropriate; and

WHEREAS, Wyo. Stat. § 34-12-108 allows any part of a plat to be partially vacated; provided, such vacating does not abridge or destroy any of the rights and privileges of other proprietors in said plat; and

WHEREAS, the Governing Body of the City of Cheyenne finds that vacating portions of the note affecting Lot 1, Block 3; Lot 1, Block 5; and Lot 1, Block 6 of the Storey Boulevard Extension final plat does not abridge or destroy any of the rights and privileges of other proprietors in said plat;

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the partial plat vacation be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute this resolution partially vacating the Storey Boulevard Extension final plat as shown in Attachment A; and

BE IT FURTHER RESOLVED THAT the County Clerk of Laramie County is hereby directed to mark the recorded Storey Boulevard Extension final plat to reflect this partial plat vacation pursuant to Wyo. Stat. § 34-12-110.

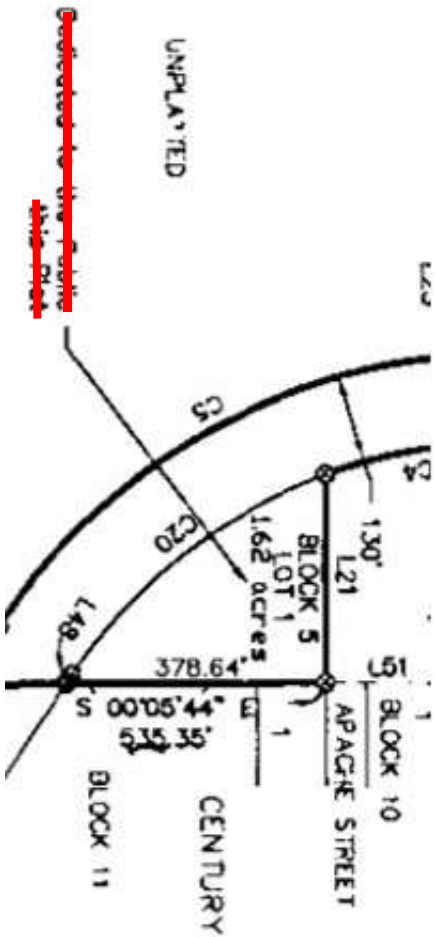
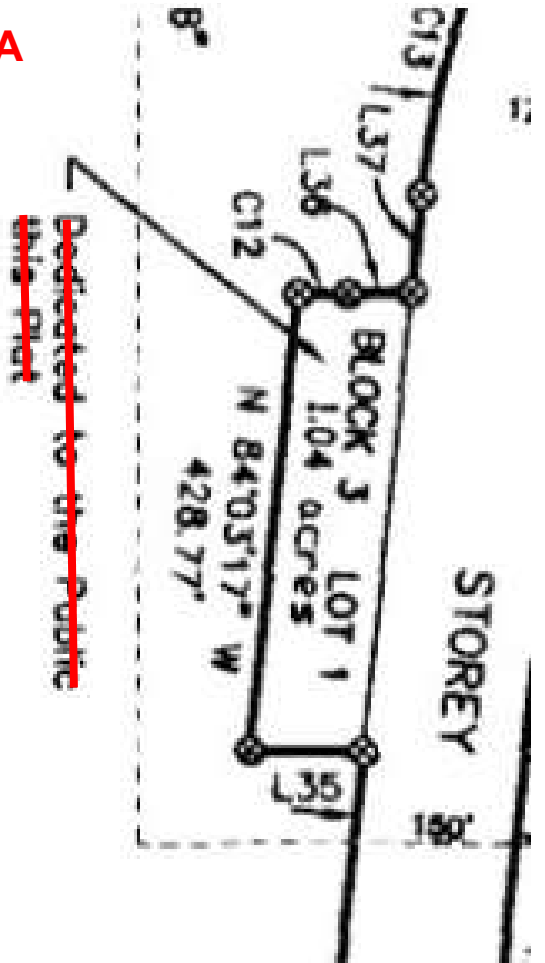
PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2022.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

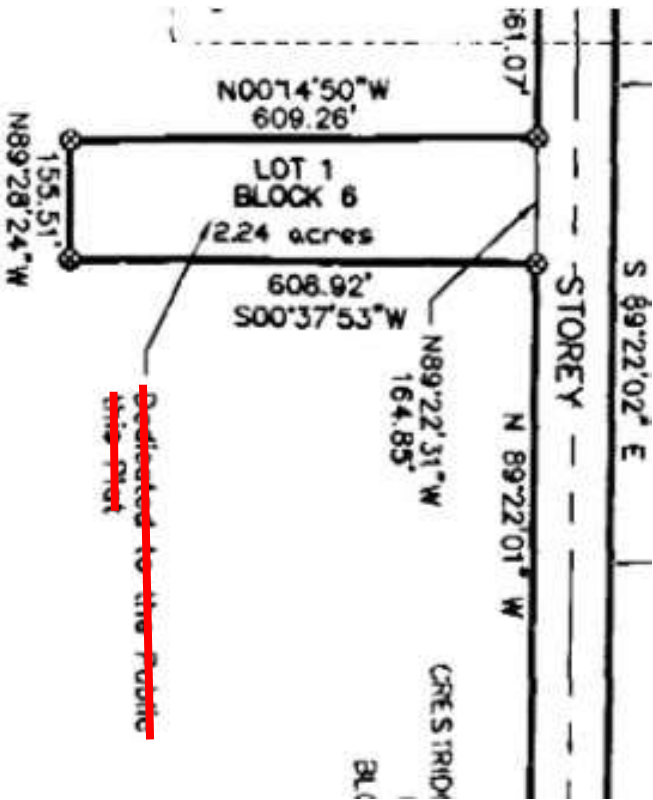
Attachment A



DEDICATION

KNOW ALL MEN BY THESE PRESENTS: THAT KEN LEWIS, CITY ENGINEER FOR THE CITY OF CHEYENNE, OWNER IN FEE SIMPLE OF THE LAND EMBRACED IN THIS PLAT OF STOREY BOULEVARD EXTENSION, DO HEREBY DECLARE THE SUBDIVISION OF SAID LAND TO BE THEIR FREE ACT AND DEED AND IN ACCORDANCE WITH THEIR DESIRES AND DO HEREBY DEDICATE TO THE PUBLIC FOREVER ~~LOT 1, BLOCK 3, LOT 1, BLOCK 5, AND THE RIGHTS-OF-WAY AND FUTURE ROAD RESERVATIONS AS SHOWN HEREON.~~

Ken Lewis
CITY ENGINEER
KEN LEWIS, CITY OF CHEYENNE





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CITY OF CHEYENNE PLANNING COMMISSION

MAY 16, 2022

STAFF REPORT

FILE: UDC-22-00157: Storey Boulevard Extension Partial Plat Vacation

REQUEST: A partial plat vacation vacating a note on the Storey Boulevard Extension Final Plat

LOCATION: Along Storey Boulevard between Powderhouse Road and Ridge Road, and along Converse Avenue between Storey Boulevard and Dell Range Boulevard

APPLICANT: City of Cheyenne

OWNER: City of Cheyenne

ZONING: P Public

FUTURE LAND USE: Urban Residential

TOTAL AREA: 57 acres for the entire original plat; 5.2 acres for the affected properties

PURPOSE: To allow the development, trade, sale, or other use of City-owned property.

PREPARED BY: Seth Lloyd – Planner II - Development



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the partial plat vacation to delete references in the dedication statement and callouts on the face of the Storey Boulevard Extension final plat that dedicate Lot 1, Block 3; Lot 1, Block 5; and Lot 1, Block 6 to the public.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- W.S. 34-12-106 through W.S. 34-12-111

BACKGROUND:

The Storey Boulevard Extension Plat was created by the City from City owned land specifically to dedicate public rights-of-way (extending Storey Boulevard and Converse Avenue). Not all the land owned by the City was required to become public right-of-way. The excess land was turned into 6 lots. Lot 1, Block 3; Lot 1, Block 5; and Lot 1, Block 6 were annotated on the plat as being “dedicated to the public” along with the streets. Typically, dedication to the public is reserved for rights-of-way, not lots, and as the City retained ownership, the City could reserve these for whatever use would best suit the public, without having this note. The proposal is to remove this note and associated callouts from the plat.

REVIEW CRITERIA:

The Unified Development Code of the City of Cheyenne is silent on the plat vacation process so defaulting to state statutes is appropriate. W.S. 34-12-106 through 34-12-111 allows for plat vacation.

W.S. 34-12-106 [Vacation; generally]

This section allows a plat to be fully vacated under certain conditions. It also directs full and partial plat vacations to be approved by the Governing Body. The plat vacation must be approved by all owners affected by the plat vacation. The proposed plat vacation has all owners affected by the vacation applying, and will come before the Governing Body.

W.S. 34-12-107 [Vacation; streets and alleys]

This section is not applicable to this request.

W.S. 34-12-108 [Vacation; partial vacation; when permitted]

This section allows any part of a plat to be vacated; provided, such vacating does not abridge or destroy any of the rights and privileges of other proprietors in said plat; and does not close or obstruct public highways. The proposed partial plat vacation does not propose vacating any streets, and the property owners affected by the vacation do not have any rights removed.

W.S. 34-12-109 [Vacation; partial vacation; effect on streets]

This section is not applicable to this request.

W.S. 34-12-110 [Vacation; duty of county clerk]

This section is a directive to the County Clerk after a partial plat vacation is approved. The section is not applicable to the review of the request.

W.S. 34-12-111 [Vacation; platting by county surveyor; acknowledgment and recording; conveyance and assessment by number]

This section is not applicable to this request.

STAFF REVIEW:

Through the review process, comments were received regarding the existence of both the note and callouts on the face of the plat.

CONCLUSION:

Staff concludes that the proposed note and call out modification does not abridge or destroy any of the rights and privileges of other proprietors in said plat and is being done in accordance with W.S. 34-12-106 and 108.

ALTERNATIVES:

1. Recommend approval of the plat vacation as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the plat vacation subject to conditions or modifications.
3. Recommend denial of the plat vacation based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the plat vacation until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

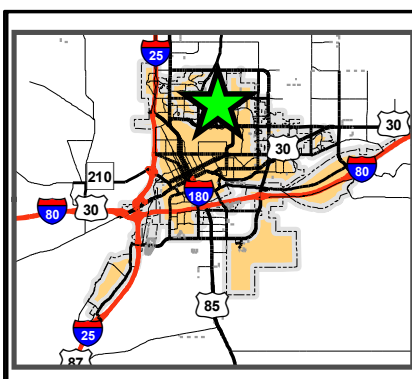
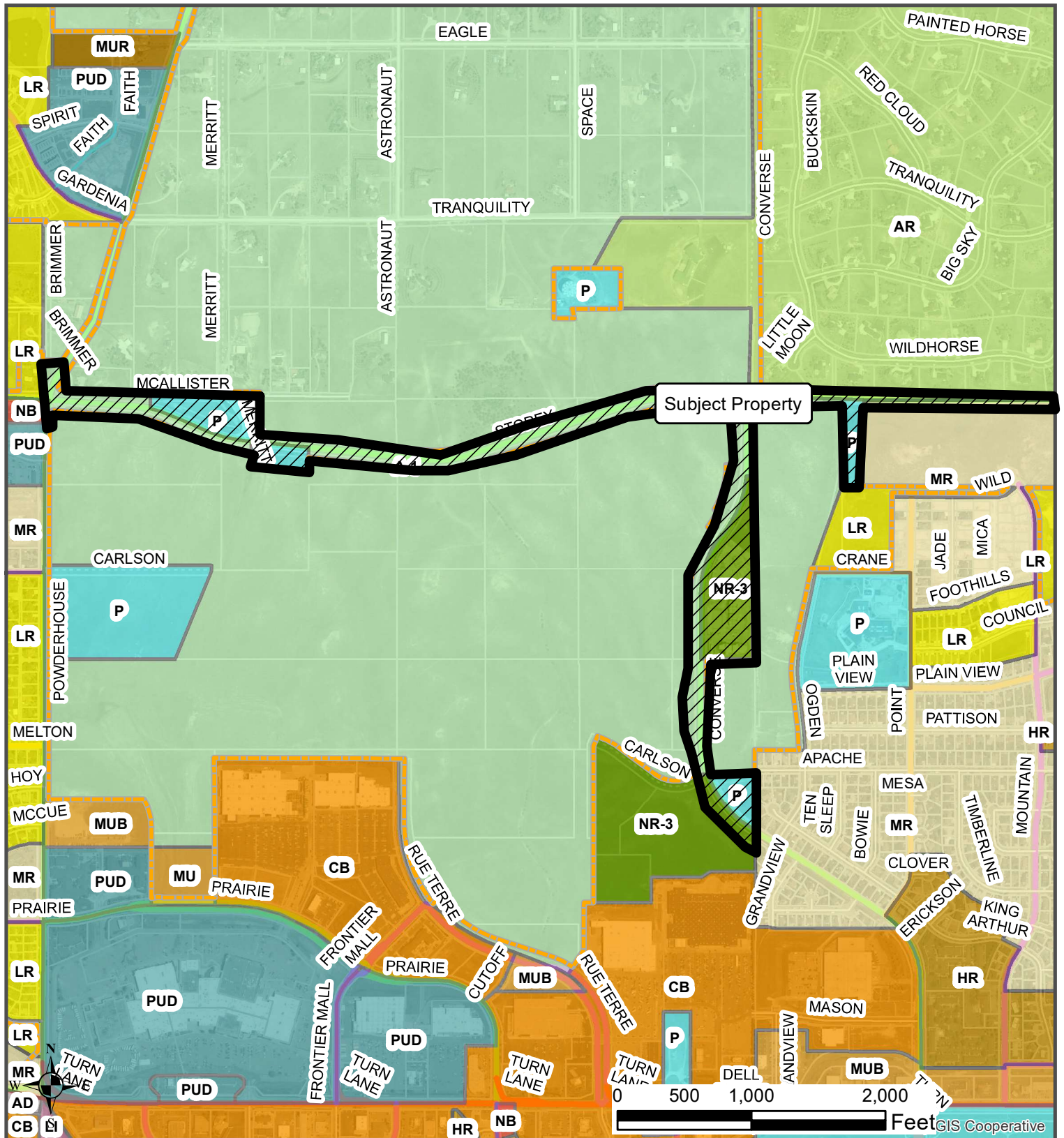
In the event that the Commission acts contrary to staff's recommendation or modifies recommended conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends **approval** of the partial plat vacation to delete references in the dedication statement and callouts on the face of the Storey Boulevard Extension final plat that dedicate Lot 1, Block 3; Lot 1, Block 5; and Lot 1, Block 6 to the public.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Storey Boulevard Extension Final Plat
4. Note Modification Exhibit

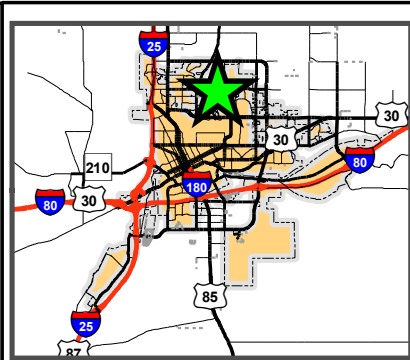
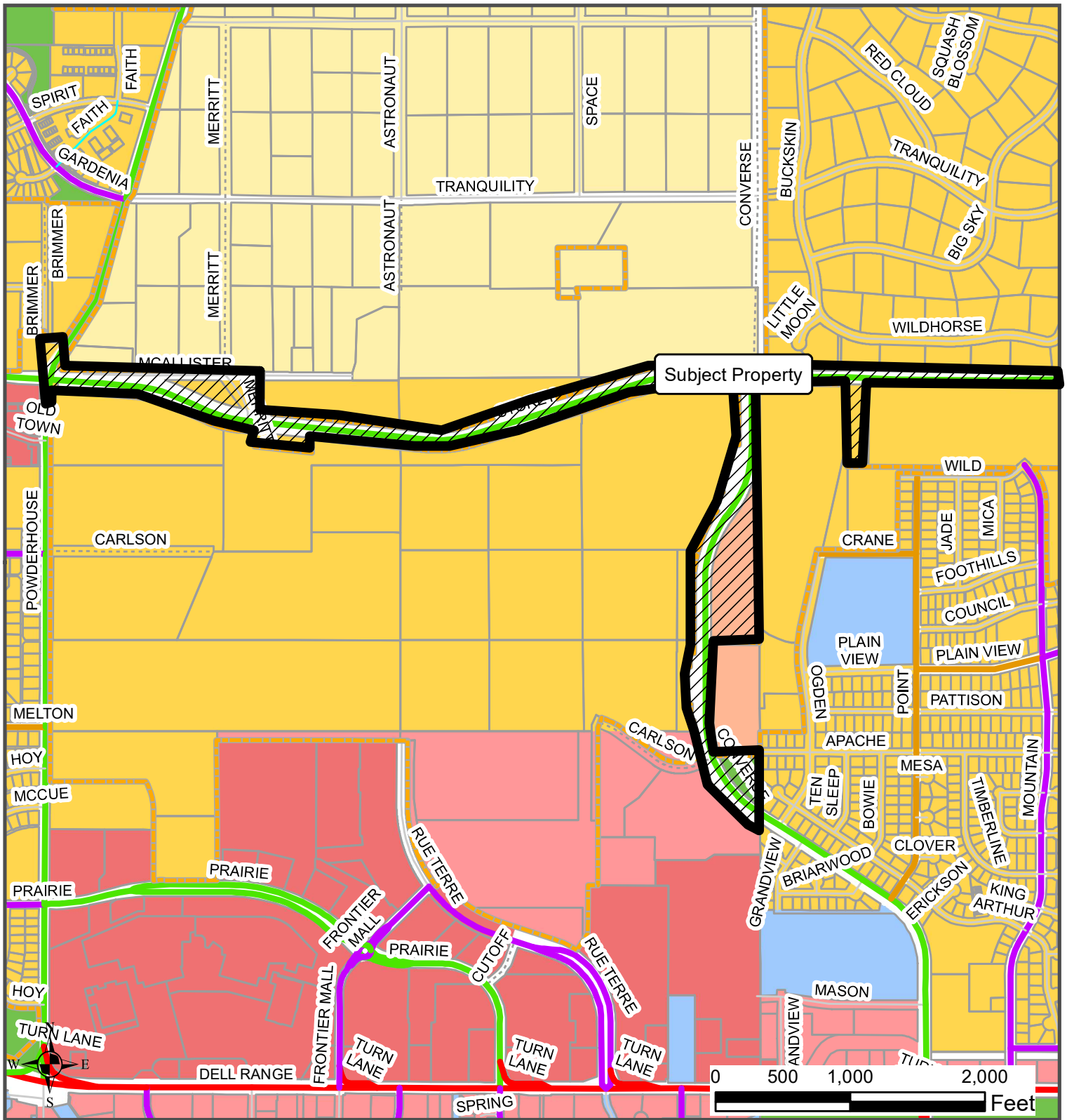


Attachment 1: Zoning Map UDC-22-00157

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt

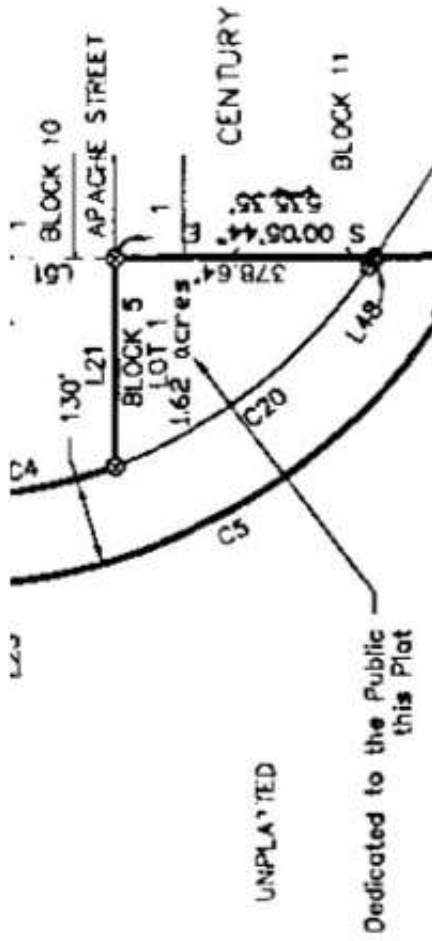


Attachment 2: Land Use Map UDC-22-00157

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Legend

- | | | |
|--------------------|------------------------------|---------------------------|
| Nov19_CityLimits | Agricultural/Rural | Industrial |
| Interstate | Rural Residential | Central Business District |
| Principal Arterial | Urban Transition Residential | Community Business |
| Minor Arterial | Urban Residential | Public and Quasi-Public |
| Major Collector | Mixed-Use Residential | Military/Federal |
| Minor Collector | Mixed-Use Commercial | Open Space and Parks |
| Local | Mixed-Use Employment | |
| Private | | |
| Platted not built | | |
| Ownership | | |



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